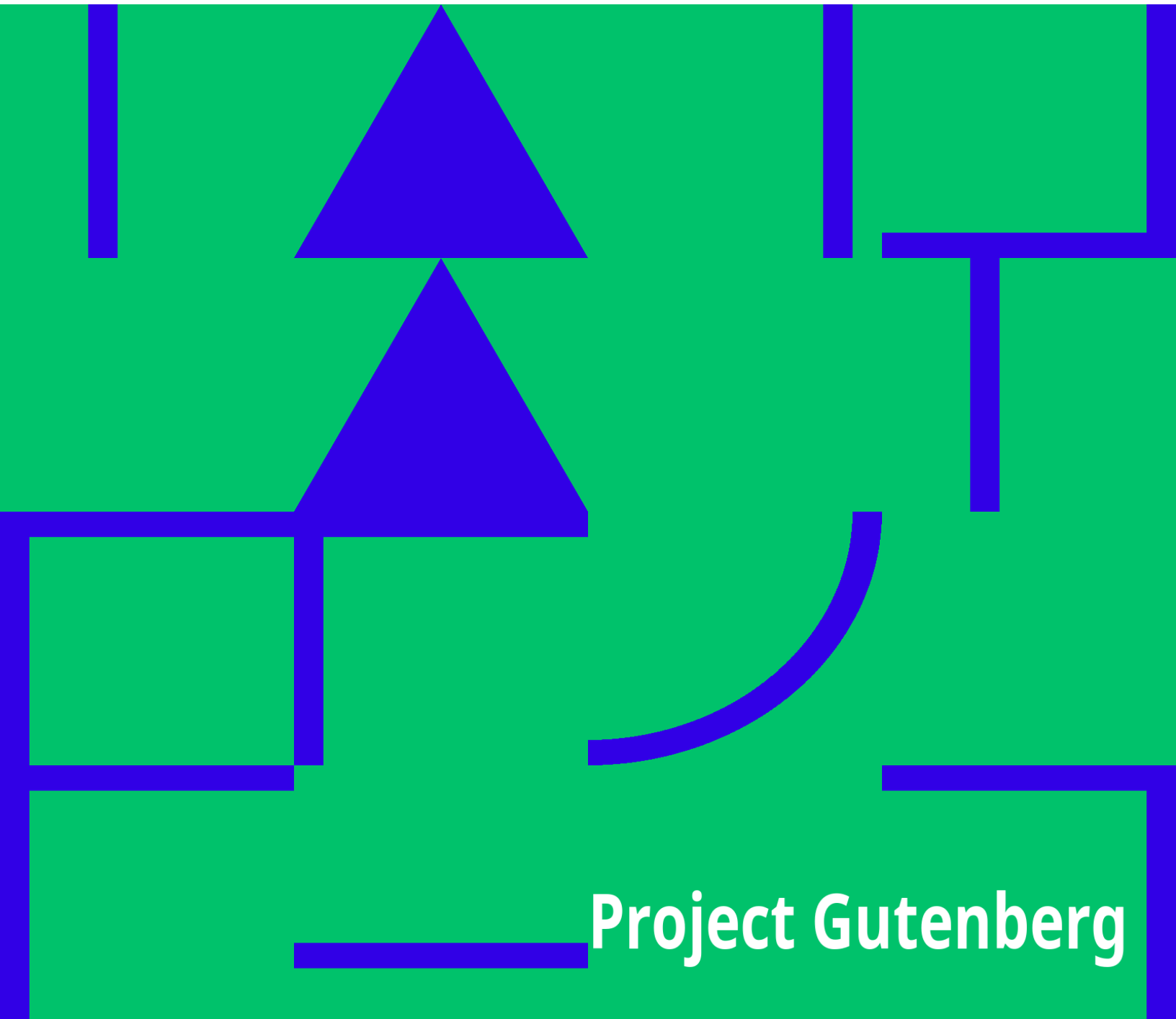


Bay: A Book of Poems

D. H. Lawrence



Project Gutenberg

Bay: A Book of Poems

D. H. Lawrence



The Project Gutenberg eBook of Bay: A Book of Poems

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Bay: A Book of Poems

Author: D. H. Lawrence

Release date: September 23, 2007 [eBook #22734]

Most recently updated: April 19, 2019

Language: English

Other information and formats: www.gutenberg.org/ebooks/22734

Credits: Etext produced by Lewis Jones

HTML file produced by David Widger

D.H. Lawrence (1919) _Bay: A Book of Poems_

Transcriber's Note: These poems were first published by the Beaumont Press in a limited edition. Facsimile page images from the original publication, including facsimile images of the original coloured illustrations

by Anne Estelle Rice, are freely available from the
Internet Archive.

*** START OF THE PROJECT GUTENBERG EBOOK BAY: A BOOK
OF POEMS ***

BAY

A Book Of Poems

By D. H. Lawrence

1919

TO CYNTHIA ASQUITH

CONTENTS

[GUARDS!](#)

[EVOLUTIONS OF SOLDIERS](#)

[THE LITTLE TOWN AT EVENING](#)

[LAST HOURS](#)

[TOWN](#)

[AFTER THE OPERA](#)

[GOING BACK](#)

[ON THE MARCH](#)

[BOMBARDMENT](#)

[WINTER-LULL](#)

[THE ATTACK](#)

OBSEQUIAL ODE

SHADES

BREAD UPON THE WATERS.

RUINATION

RONDEAU OF A CONSCIENTIOUS

TOMMIES IN THE TRAIN

WAR-BABY

NOSTALGIA

GUARDS!

A Review in Hyde Park 1913.
The Crowd Watches.

WHERE the trees rise like cliffs, proud and
blue-tinted in the distance,
Between the cliffs of the trees, on the grey-
green park
Rests a still line of soldiers, red motionless range of
guards
Smouldering with darkened busbies beneath the bay-
onets' slant rain.

Colossal in nearness a blue police sits still on his horse
Guarding the path; his hand relaxed at his thigh,
And skyward his face is immobile, eyelids aslant
In tedium, and mouth relaxed as if smiling—ineffable
tedium!

So! So! Gaily a general canters across the space,
With white plumes blinking under the evening grey
sky.
And suddenly, as if the ground moved
The red range heaves in slow, magnetic reply.

EVOLUTIONS OF SOLDIERS

The red range heaves and compulsory sways, ah see!
in the flush of a march
Softly-impulsive advancing as water towards a weir
from the arch
Of shadow emerging as blood emerges from inward
shades of our night
Encroaching towards a crisis, a meeting, a spasm and
throb of delight.

The wave of soldiers, the coming wave, the throbbing
red breast of approach
Upon us; dark eyes as here beneath the busbies glit-
tering, dark threats that broach
Our beached vessel; darkened rencontre inhuman, and
closed warm lips, and dark
Mouth-hair of soldiers passing above us, over the wreck
of our bark.

And so, it is ebb-time, they turn, the eyes beneath the
busbies are gone.
But the blood has suspended its timbre, the heart from
out of oblivion
Knows but the retreat of the burning shoulders, the
red-swift waves of the sweet
Fire horizontal declining and ebbing, the twilit ebb of
retreat.

THE LITTLE TOWN AT EVENING

THE chime of the bells, and the church clock
striking eight
Solemnly and distinctly cries down the babel
of children still playing in the hay.
The church draws nearer upon us, gentle and great
In shadow, covering us up with her grey.

Like drowsy children the houses fall asleep
Under the fleece of shadow, as in between
Tall and dark the church moves, anxious to keep
Their sleeping, cover them soft unseen.

Hardly a murmur comes from the sleeping brood,
I wish the church had covered me up with the rest
In the home-place. Why is it she should exclude
Me so distinctly from sleeping with those I love best?

LAST HOURS

THE cool of an oak's unchequered shade
Falls on me as I lie in deep grass
Which rushes upward, blade beyond blade,
While higher the darting grass-flowers pass
Piercing the blue with their crocketed spires
And waving flags, and the ragged fires
Of the sorrel's cresset—a green, brave town
Vegetable, new in renown.

Over the tree's edge, as over a mountain
Surges the white of the moon,
A cloud comes up like the surge of a fountain,
Pressing round and low at first, but soon
Heaving and piling a round white dome.
How lovely it is to be at home
Like an insect in the grass
Letting life pass.

There's a scent of clover crept through my hair
From the full resource of some purple dome
Where that lumbering bee, who can hardly bear
His burden above me, never has clomb.
But not even the scent of insouciant flowers
Makes pause the hours.

Down the valley roars a townward train.
I hear it through the grass
Dragging the links of my shortening chain
Southwards, alas!

TOWN

LONDON

Used to wear her lights splendidly,
Flinging her shawl-fringe over the River,
Tassels in abandon.

And up in the sky
A two-eyed clock, like an owl
Solemnly used to approve, chime, chiming,
Approval, goggle-eyed fowl.

There are no gleams on the River,
No goggling clock;
No sound from St. Stephen's;
No lamp-fringed frock.

Instead,
Darkness, and skin-wrapped
Fleet, hurrying limbs,
Soft-footed dead.

London
Original, wolf-wrapped
In pelts of wolves, all her luminous
Garments gone.

London, with hair
Like a forest darkness, like a marsh
Of rushes, ere the Romans
Broke in her lair.

It is well

That London, lair of sudden
Male and female darkneses
Has broken her spell.

AFTER THE OPERA

DOWN the stone stairs

Girls with their large eyes wide with tragedy
Lift looks of shocked and momentous emotion
up at me.
And I smile.

Ladies

Stepping like birds with their bright and pointed feet
Peer anxiously forth, as if for a boat to carry them out
of the wreckage,
And among the wreck of the theatre crowd
I stand and smile.

They take tragedy so becomingly.
Which pleases me.

But when I meet the weary eyes
The reddened aching eyes of the bar-man with thin
arms,
I am glad to go back to where I came from.

GOING BACK

THE NIGHT turns slowly round,
Swift trains go by in a rush of light;
Slow trains steal past.
This train beats anxiously, outward bound.

But I am not here.
I am away, beyond the scope of this turning;
There, where the pivot is, the axis
Of all this gear.

I, who sit in tears,
I, whose heart is torn with parting;
Who cannot bear to think back to the departure
platform;
My spirit hears

Voices of men
Sound of artillery, aeroplanes, presences,
And more than all, the dead-sure silence,
The pivot again.

There, at the axis
Pain, or love, or grief
Sleep on speed; in dead certainty;
Pure relief.

There, at the pivot
Time sleeps again.
No has-been, no here-after; only the perfected
Silence of men.

ON THE MARCH

WE are out on the open road.

Through the low west window a cold light
flows

On the floor where never my numb feet trode
Before; onward the strange road goes.

Soon the spaces of the western sky
With shutters of sombre cloud will close.
But we'll still be together, this road and I,
Together, wherever the long road goes.

The wind chases by us, and over the corn
Pale shadows flee from us as if from their foes.
Like a snake we thresh on the long, forlorn
Land, as onward the long road goes.

From the sky, the low, tired moon fades out;
Through the poplars the night-wind blows;
Pale, sleepy phantoms are tossed about
As the wind asks whither the wan road goes.

Away in the distance wakes a lamp.
Inscrutable small lights glitter in rows.
But they come no nearer, and still we tramp
Onward, wherever the strange road goes.

Beat after beat falls sombre and dull.
The wind is unchanging, not one of us knows
What will be in the final lull
When we find the place where this dead road goes.

For something must come, since we pass and pass
Along in the coiled, convulsive throes
Of this marching, along with the invisible grass
That goes wherever this old road goes.

Perhaps we shall come to oblivion.
Perhaps we shall march till our tired toes
Tread over the edge of the pit, and we're gone
Down the endless slope where the last road goes.

If so, let us forge ahead, straight on
If we're going to sleep the sleep with those
That fall forever, knowing none
Of this land whereon the wrong road goes.

BOMBARDMENT

THE TOWN has opened to the sun.
Like a flat red lily with a million petals
She unfolds, she comes undone.

A sharp sky brushes upon
The myriad glittering chimney-tips
As she gently exhales to the sun.

Hurrying creatures run
Down the labyrinth of the sinister flower.
What is it they shun?

A dark bird falls from the sun.
It curves in a rush to the heart of the vast
Flower: the day has begun.

WINTER-LULL

Because of the silent snow, we are all hushed
 Into awe.
No sound of guns, nor overhead no rushed
 Vibration to draw
Our attention out of the void wherein we are crushed.

A crow floats past on level wings
 Noiselessly.
Uninterrupted silence swings
 Invisibly, inaudibly
To and fro in our misgivings.

We do not look at each other, we hide
 Our daunted eyes.
White earth, and ruins, ourselves, and nothing beside.
 It all belies
Our existence; we wait, and are still denied.

We are folded together, men and the snowy ground
 Into nullity.
There is silence, only the silence, never a sound
 Nor a verity
To assist us; disastrously silence-bound!

THE ATTACK

WHEN we came out of the wood
Was a great light!
The night uprisen stood
In white.

I wondered, I looked around
It was so fair. The bright
Stubble upon the ground
Shone white

Like any field of snow;
Yet warm the chase
Of faint night-breaths did go
Across my face!

White-bodied and warm the night was,
Sweet-scented to hold in my throat.
White and alight the night was.
A pale stroke smote

The pulse through the whole bland being
Which was This and me;
A pulse that still went fleeing,
Yet did not flee.

After the terrible rage, the death,
This wonder stood glistening?
All shapes of wonder, with suspended breath,
Arrested listening

In ecstatic reverie.

The whole, white Night!—
With wonder, every black tree
Blossomed outright.

I saw the transfiguration
And the present Host.
Transubstantiation
Of the Luminous Ghost.

OBSEQUIAL ODE

SURELY you've trodden straight
To the very door!
Surely you took your fate
Faultlessly. Now it's too late
To say more.

It is evident you were right,
That man has a course to go
A voyage to sail beyond the charted seas.
You have passed from out of sight
And my questions blow
Back from the straight horizon that ends all one sees.

Now like a vessel in port
You unlade your riches unto death,
And glad are the eager dead to receive you there.
Let the dead sort
Your cargo out, breath from breath
Let them disencumber your bounty, let them all share.

I imagine dead hands are brighter,
Their fingers in sunset shine
With jewels of passion once broken through you as a
prism
Breaks light into jewels; and dead breasts whiter
For your wrath; and yes, I opine
They anoint their brows with your blood, as a perfect
chrism.

On your body, the beaten anvil,
Was hammered out

That moon-like sword the ascendant dead unsheathe
Against us; sword that no man will
Put to rout;
Sword that severs the question from us who breathe.

Surely you've trodden straight
To the very door.
You have surely achieved your fate;
And the perfect dead are elate
To have won once more.

Now to the dead you are giving
Your last allegiance.
But what of us who are living
And fearful yet of believing
In your pitiless legions.

SHADES

SHALL I tell you, then, how it is?—

There came a cloven gleam
Like a tongue of darkened flame
To flicker in me.

And so I seem
To have you still the same
In one world with me.

In the flicker of a flower,
In a worm that is blind, yet strives,
In a mouse that pauses to listen

Glimmers our
Shadow; yet it deprives
Them none of their glisten.

In every shaken morsel
I see our shadow tremble
As if it rippled from out of us hand in hand.

As if it were part and parcel,
One shadow, and we need not dissemble
Our darkness: do you understand?

For I have told you plainly how it is.

BREAD UPON THE WATERS.

SO you are lost to me!

Ah you, you ear of corn straight lying,
What food is this for the darkly flying
Fowls of the Afterwards!

White bread afloat on the waters,
Cast out by the hand that scatters
Food untowards,

Will you come back when the tide turns?
After many days? My heart yearns
To know.

Will you return after many days
To say your say as a traveller says,
More marvel than woe?

Drift then, for the sightless birds
And the fish in shadow-waved herds
To approach you.

Drift then, bread cast out;
Drift, lest I fall in doubt,
And reproach you.

For you are lost to me!

RUINATION

THE sun is bleeding its fires upon the mist
That huddles in grey heaps coiling and holding
back.

Like cliffs abutting in shadow a drear grey sea
Some street-ends thrust forward their stack.

On the misty waste-lands, away from the flushing grey
Of the morning the elms are loftily dimmed, and tall
As if moving in air towards us, tall angels
Of darkness advancing steadily over us all.

RONDEAU OF A CONSCIENTIOUS

OBJECTOR.

THE hours have tumbled their leaden, monotonous sands

And piled them up in a dull grey heap in the West.

I carry my patience sullenly through the waste lands;
To-morrow will pour them all back, the dull hours I detest.

I force my cart through the sodden filth that is pressed
Into ooze, and the sombre dirt spouts up at my hands
As I make my way in twilight now to rest.
The hours have tumbled their leaden, monotonous sands.

A twisted thorn-tree still in the evening stands
Defending the memory of leaves and the happy round nest.
But mud has flooded the homes of these weary lands
And piled them up in a dull grey heap in the West.

All day has the clank of iron on iron distressed
The nerve-bare place. Now a little silence expands
And a gasp of relief. But the soul is still compressed:
I carry my patience sullenly through the waste lands.

The hours have ceased to fall, and a star commands
Shadows to cover our stricken manhood, and blest
Sleep to make us forget: but he understands:

To-morrow will pour them all back, the dull hours
I detest.



TOMMIES IN THE TRAIN

THE SUN SHINES,

The coltsfoot flowers along the railway banks
Shine like flat coin which Jove in thanks
Strews each side the lines.

A steeple
In purple elms, daffodils
Sparkle beneath; luminous hills
Beyond—and no people.

England, Oh Danaë
To this spring of cosmic gold
That falls on your lap of mould!
What then are we?

What are we
Clay-coloured, who roll in fatigue
As the train falls league by league
From our destiny?

A hand is over my face,
A cold hand. I peep between the fingers
To watch the world that lingers
Behind, yet keeps pace.

Always there, as I peep
Between the fingers that cover my face!
Which then is it that falls from its place
And rolls down the steep?

Is it the train

That falls like meteorite
Backward into space, to alight
Never again?

Or is it the illusory world
That falls from reality
As we look? Or are we
Like a thunderbolt hurled?

One or another
Is lost, since we fall apart
Endlessly, in one motion depart
From each other.

WAR-BABY

THE CHILD like mustard-seed
Rolls out of the husk of death
Into the woman's fertile, fathomless lap.

Look, it has taken root!
See how it flourisheth.
See how it rises with magical, rosy sap!

As for our faith, it was there
When we did not know, did not care;
It fell from our husk like a little, hasty seed.

Sing, it is all we need.
Sing, for the little weed
Will flourish its branches in heaven when we
slumber beneath.

NOSTALGIA

THE WANING MOON looks upward; this
grey night
Slopes round the heavens in one smooth curve
Of easy sailing; odd red wicks serve
To show where the ships at sea move out of sight.

The place is palpable me, for here I was born
Of this self-same darkness. Yet the shadowy house
below
Is out of bounds, and only the old ghosts know
I have come, I feel them whimper in welcome, and
mourn.

My father suddenly died in the harvesting corn
And the place is no longer ours. Watching, I hear
No sound from the strangers, the place is dark, and fear
Opens my eyes till the roots of my vision seems torn.

Can I go no nearer, never towards the door?
The ghosts and I we mourn together, and shrink
In the shadow of the cart-shed. Must we hover on
the brink
Forever, and never enter the homestead any more?

Is it irrevocable? Can I really not go
Through the open yard-way? Can I not go past the
sheds
And through to the mow?—Only the dead in their
beds
Can know the fearful anguish that this is so.

I kiss the stones, I kiss the moss on the wall,
And wish I could pass impregnate into the place.
I wish I could take it all in a last embrace.
I wish with my breast I here could annihilate it all.

*** END OF THE PROJECT GUTENBERG EBOOK BAY: A BOOK OF
POEMS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.